

Court No. - 39

Case :- WRIT - C No. - 24880 of 2020

Petitioner :- Tahira Begum

Respondent :- Purvanchal Vidyut Vitran And Another

Counsel for Petitioner :- Mahboob Ahmad, Anas Mahboob

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Learned counsel Shri Narendra Kumar Tiwari for the Power Corporation prays for and is granted a week's time to seek instruction relating to checking report of the premises of the petitioner, provisional assessment, final assessment and receipt of the registered post issued against the petitioner.

Let the case be placed on 13.1.2021 as unlisted.

Order Date :- 5.1.2021

M. Tariq

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Respondent :- Purvanchal Vidyut Vitran And Another

Counsel for Petitioner :- Mahboob Ahmad, Anas Mahboob

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

The present writ petition is directed against the provisional assessment notice dated 26.09.2020.

The contention of learned counsel for the petitioner is that the provisional assessment order is based on a false checking report, copy of which had never been provided to the petitioner in compliance of the procedure provided under Clause 8.1 (a) (vi). In fact there was no prima facie evidence of theft of electricity with respect to the premises in question. The petitioner had even moved an application dated 31.10.2020 in the office of respondent no.2 to provide her the copy of the checking report but the same has not been provided till date. The contention is that the entire proceedings relating to assessment in the matter of alleged theft of electricity has been undertaken behind the back of the petitioner.

Sri Narendra Kumar Tiwari, learned Advocate appearing for the respondents, however, states that a copy of the checking report has been obtained by him and the same has been served upon the counsel for the petitioner in the Court today.

A perusal of the provisions under Section 135 read with Section 126 of the Electricity Act, 2003 as also Clause 8.1(a) of the U.P. Electricity Supply Code, 2005 makes it evident that in case of theft of electricity, copy of the inspection report has to be served upon the consumer or his/her representative at the site immediately under proper receipt. In case of refusal by the consumer or his/her representative to either accept the report or give a receipt, a copy of the same has to be pasted at a conspicuous place in/outside the premises.

Sub-section (3) of Section 126 of the Act further provides that the order of provisional assessment made under sub-section (2) of the said section has to be served upon the persons in occupation or possession or in charge of the place or premises. The person concerned shall be entitled to file objection against the provisional assessment before the assessing officer. On filing of the said objection, the assessing officer has to provide

a reasonable opportunity of hearing to such person before making final order of assessment.

The issues being raised herein would obviously require factual enquiry.

Self contained procedure has been provided under the Electricity Act, 2003 read with 'The Electricity Code' 2005, in the matter of assessment of loss of energy or unauthorized consumption, in a case of theft of electricity. For any allegations of non-service of the inspection report and wrong provisional assessment based on the alleged false inspection report, liberty is with the petitioner to raise all the issues in the objection to be filed by her against the provisional assessment order, which has admittedly been received by the petitioner.

In view of the above, without adjudicating on merits, the present writ petition is being **disposed of** with the directions as follows:

(i) The petitioner shall file her objection, raising all the issues before the assessing officer/respondent no.2 along with the copy of this order within a period of three weeks.

(ii) In case, such an objection is filed, the assessing officer/respondent No.2 shall be under obligation to take an expeditious decision by passing a reasoned and speaking order, in accordance with law, before finalizing the assessment as per the provisions of Sub-section (3) of Section 126 of the Act.

(iii) In case, the petitioner makes a request for personal hearing, the same shall also be duly afforded by the assessing officer on a date to be fixed by him under due intimation to the petitioner.

(iv) In case of non-cooperation of the petitioner or failure to file her objections within the time given above, it would be open for the assessing officer to proceed in accordance with law.

Order Date :- 23.2.2021/SKD